

The LYCRA Company Singapore Pte. Ltd.

39 Tuas Crescent, Singapore 638726

The LYCRA Company

RCB Registration No 199100954E
GST Registration No MR85000424

Invoice			Date	Invoice Number	
			03-Sep-2026	3310082608	
Delivery Note No.	Shipment Number	Customer Order Reference	Our Order Reference	Country of Destination	
81135026		TJM4500230	10507632	Indonesia	
Customer No.	Contact email ID				
9010017200	CS.APP.SG@LYCRA.COM				
Invoice To			Ship-To		
TEEJAY MAURITIUS (PRIVATE) LIMITED ROGERS HOUSE NO. 5 PRESIDENT JOHN KENNEDY STREET 3FL 11302 PORT LOUIS MAURITIUS			PT. NIRWANA ALABARE GARMENT JL. RAYA RANCAEKEK-MAJALAYA NO.289 DESA SOLOKAN JERUK KECAMATAN SOLOKAN JERUK KABUPATEN BANDUNG JAWA BARAT 40382 INDONESIA		
Terms of Payment	45 days net from invoice date				
Payment Due	18-Oct-2026				
Shipping Date	Seller's Shipping Point		INCOTERMS® 2010		
09/03/2026	Singapore Sankyu WHS		CPT JAKARTA AIRPORT		
Sold-To:					
TEEJAY MAURITIUS (PRIVATE) LIMITED ROGERS HOUSE NO. 5 PRESIDENT JOHN KENNEDY STREET 3FL 11302 PORT LOUIS MAURITIUS					
Item	Product & Description		Quantity	Unit Price	Per Unit Amount

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Page 2 of 5

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				Indonesia			
Item	Product & Description			Quantity	Unit Price	Per	Unit
10	2100003833 LYCRA® Fiber Elastane Fiber 44 Dtex 40 Den Type 562B TU (500gr) Merge 1U143 Country of Origin: Singapore HTS: 540244 Shipping Date: 09/03/2026 Our Order Reference: 10507632 Customer Order Reference: TJM4500230			54.000	18.30	1	KG
20	2100000631 LYCRA® Fiber Elastane Fiber 22 Dtex 20 Den Type 562B TU (450gr) Merge 1U072 Country of Origin: Singapore HTS: 540244 Shipping Date: 09/03/2026 Our Order Reference: 10507632 Customer Order Reference: TJM4500230			48.600	21.50	1	KG
				Total Product Value:		USD	2,033.10
				Total Tax Value:		USD	0.00

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Please send remittance in invoice currency with invoice no.(s) and account no. to: Bank Name: HSBC HK Bank Account No: USD Account: 808-282644-201 SWIFT Code: HSBCHKHH For Letters of Credit and Documentary Collection payment, kindly refer to The LYCRA Company guidelines			AMOUNT DUE	USD 2,033.10
			Payment Reference	Customer Code 9010017200
			The LYCRA Company's Terms and Conditions of Sale on the following pages are incorporated by reference and apply to this Sale.	

The LYCRA Company Singapore Pte. Ltd.

TERMS AND CONDITIONS OF SALE

1. **TERMS OF SALE.** These Terms and Conditions of Sale ("Terms") shall apply to the Sales Agreement to which these Terms are attached (the "Sales Agreement", together with these Terms, the "Agreement"). All purchases by Buyer of Product described in the Agreement ("Product") are expressly limited to and conditioned upon acceptance of these Terms, regardless of whether Buyer purchases Product through any media or means, including but not limited to, written purchase orders, electronic orders via EDI, acknowledgements, confirmations, or other writings from Buyer to The LYCRA Company (collectively, "Purchase Orders"). Unless such provisions are expressly agreed to by The LYCRA Company in a writing signed by The LYCRA Company, any additional or conflicting terms and conditions contained on, attached to or referenced by Buyer's Purchase Orders, or other prior or later communication from Buyer to The LYCRA Company, shall have no effect on the purchase of any such Product by Buyer from The LYCRA Company and are expressly rejected by The LYCRA Company. The Agreement is deemed an offer for sale by The LYCRA Company. If Buyer does not accept the Agreement by execution thereof, Buyer's commencement of performance (including, without limitation, ordering, purchasing or taking delivery of Product) shall in all cases constitute Buyer's unqualified and unconditional acceptance of the Agreement.
2. **TITLE AND RISK OF LOSS.** Unless otherwise stated in the Agreement, all Product shall be shipped Ex Works The LYCRA Company's designated shipping point (in accordance with Incoterms 2010). Unless otherwise stated in the Agreement, title to Product and risk of loss, damage and contamination of Product passes to Buyer when The LYCRA Company places Product with a common carrier at the shipping point and Product shall be deemed "delivered" at such time. After passage of title of the Product to Buyer, Buyer assumes all risk and liability, and The LYCRA Company shall not be liable to Buyer for any loss or damage to persons, property or the environment arising out of or related to the Product. The LYCRA Company will not place a valuation upon Product shipments unless specifically required in writing by Buyer or required for export purposes.
3. **TAXES AND DUTIES.** All taxes, duties, tariffs, consular fees, levies, penalties, and other charges imposed by any governmental authority, now or hereafter imposed with respect to the Agreement or the production, processing, manufacture, sale, delivery, transportation, importation, exportation or proceeds of Product hereunder or on remittance of funds in payment for Product shall be paid by Buyer. If paid, or required to be paid by The LYCRA Company, Buyer shall reimburse The LYCRA Company for such amounts within ten (10) days of receipt of written notice from The LYCRA Company. If any Product is rejected, Buyer shall pay all taxes, duties, tariffs, consular fees, levies, penalties or other charges resulting from failure to re-export Product from the country of destination within such time limits as may be prescribed by Law. The LYCRA Company reserves to itself all applicable duty drawback allowances, and Buyer shall provide assistance in connection with The LYCRA Company's application for the same.
4. **PRODUCT STEWARDSHIP.** Buyer acknowledges the hazards associated with the handling, unloading, discharge, storage, transportation, use, disposition, processing, admixture, or reaction (the "Use") of Product supplied under the Agreement and assumes the responsibility of advising those of its employees, agents, contractors, and customers in connection with such Use of the hazards to human health or human or environmental safety, whether such Product is used singly or in combination with other substances or in any processes or otherwise. In the event that Buyer is provided a Material Safety Data Sheet ("MSDS") by The LYCRA Company for the Product, Buyer specifically agrees that it shall advise all of its employees, agents, contractors and customers who will Use the Product of the MSDS, and any supplementary MSDS or written warnings that it may receive from The LYCRA Company from time-to-time. In addition, if Buyer believes or has reason to believe the MSDS or other information provided to Buyer by The LYCRA Company is inaccurate or in any way insufficient for any purpose, Buyer will immediately notify The LYCRA Company of the same, and provide The LYCRA Company a reasonable opportunity to supplement or correct the information. Failure of Buyer to timely provide such notice shall be deemed a waiver by Buyer of any and all claims, demands or causes of action for personal injury, damage to the environment or property arising from or attributable to the Use of Product. To the fullest extent permitted by Law, Buyer shall defend, indemnify and hold The LYCRA Company, its affiliates and their respective employees, officers, directors and stockholders (collectively "Indemnitees") harmless from and against any and all claims, demands, lawsuits, causes of action, strict liability claims, penalties, fines, administrative law actions and orders, expenses (including, without limitation, attorneys' fees and expenses) and costs and liabilities of every kind and character ("Claims") which may arise for any reason whatsoever, including personal injuries, death, damage to property or to the environment, regardless of whether based on negligence, strict liability, contract, or breach of warranty, arising out of or related to a breach of its obligations under the Agreement or the sale or Use of Product or material made in whole or in part from Product sold hereunder. Buyer's duty under this Agreement shall survive the termination, cancellation or expiration of the order contemplated by the Agreement and the cessation of any business transactions between Buyer and The LYCRA Company, and Buyer's obligations herein shall remain in full force and effect as necessary for the purposes of compliance with the terms of this Section 4.
5. **DELIVERIES.** (a) If Buyer has not issued instructions as to the method of shipment by the time Product is ready for shipment, The LYCRA Company may select any reasonable method of shipment without liability by reason of its selection. To the extent flexibility is allowed by the Agreement for time or size of deliveries, the parties will cooperate to the extent reasonable to coordinate periods and times for deliveries hereunder, and Buyer shall give reasonable prior notice as to quantities and scheduling desired, all subject to the quantities set forth in the Agreement. Buyer shall be solely liable for any demurrage arising out of the transportation, delivery, loading or storage of the Product hereunder, and The LYCRA Company shall not be liable to Buyer for damages or charges resulting from a delay in the delivery of Product.
(b) If and to the extent that Product sold hereunder is to be delivered from any The LYCRA Company facility, The LYCRA Company shall have the right to require the execution of an access agreement prior to granting Buyer, its carriers, contractors or agents, access to such facility. Buyer agrees that it, and its carriers, contractors and agents, shall comply with all of The LYCRA Company's safety rules and regulations when they are at any of The LYCRA Company's facilities.
(c) The LYCRA Company may reject transports, containers or storage presented for loading/unloading/transfer or handling which, in The LYCRA Company's sole discretion, would present an unsafe or potentially unsafe situation.
(d) The LYCRA Company may refuse to load/unload, transfer or handle any Product under any conditions it deems, in its sole discretion, unsafe, including, but not limited to, conditions caused by drivers, personnel, equipment, procedures, and/or weather conditions.
(e) If Buyer, or its contractors or agents, loads, unloads or ships "hazardous materials" (in the United States (as listed in the Tables of 49 C.F.R. 172.101, 172.102 or 195.2 as amended or replaced from time to time) pursuant to the Agreement, then Buyer warrants that all hazardous materials shall be prepared for shipment, loaded, shipped and unloaded in compliance with all applicable Laws regarding the handling and transportation of hazardous materials. To the fullest extent permitted by Law, Buyer shall indemnify, defend and hold the Indemnitees harmless from and against all Claims of whatever nature arising out of or relating to Buyer's failure to comply therewith.
(f) If a release of Product occurs after Product has been loaded at The LYCRA Company's shipping point, as between The LYCRA Company and Buyer, Buyer shall make all release notifications and reports that are required by Law and shall provide The LYCRA Company with written notice of such release notifications and reports within two (2) days of making the same. Further, as between The LYCRA Company and Buyer, Buyer shall be responsible for, and shall promptly clean up, all such releases pursuant to applicable Laws.
(g) For all deliveries under the Agreement, Buyer is solely responsible for offloading or unloading all Product. To the extent Buyer fails to offload or unload the entire quantity of Product from the transport or container utilized for shipment (i) any residual or remaining Product shall be deemed to have been abandoned by Buyer for the beneficial use or re-use by The LYCRA Company, and will become the property of The LYCRA Company when received and accepted by The LYCRA Company at the facility designated in writing by The LYCRA Company; (ii) Buyer will not receive credit, payment or other consideration for any such residual or remaining Product; and (iii) Buyer is solely responsible for the transportation of such residual or remaining Product (including freight charges, shipping documents, and compliance with all Laws related thereto) until received and accepted by The LYCRA Company at the facility designated in writing by The LYCRA Company.
6. **COMPLIANCE WITH LAW.** (a) The parties agree to comply with all applicable laws, treaties, conventions, directives, statutes, ordinances, rules, regulations, orders, writs, judgments, injunctions or decrees of any governmental authority having jurisdiction ("Laws") pertaining to the fulfillment of the Agreement.
(b) Buyer shall be responsible for compliance with all Laws applicable to Product once the Product has been delivered by The LYCRA Company in accordance with the Agreement, including, without limitation, those related to operations, safety, maintenance, equipment, size and capacity, and pollution prevention.
(c) If any license or consent of any government or other authority is required for the acquisition, carriage or Use of Product by Buyer, Buyer shall obtain the same at its expense, and if necessary, provide evidence of the same to The LYCRA Company on request. Failure to do so will entitle The LYCRA Company to withhold or delay shipment, but failure to do so will not entitle Buyer to withhold or delay payment of the price therefor. Any expenses or charges incurred by The LYCRA Company resulting from such failure shall be paid for by Buyer within ten (10) days of receipt of The LYCRA Company's written request.
(d) Except as permitted under U.S. Laws, Product shall not be sold, supplied or delivered by the Buyer directly or indirectly to any party or destination that, at the time of such sale, supply or delivery, is declared an embargoed/restricted party or destination by the government of the United States of America or by the United Nations. Within two (2) days after The LYCRA Company's request, Buyer shall provide The LYCRA Company with appropriate documentation to verify the final destination of any Product delivered hereunder.
7. **UNLOADING AND CONTAINERS.** Buyer shall unload and release all transportation equipment promptly so that no demurrage or other expense or loss resulting from delay shall be incurred and shall comply with all instructions, if any, that The LYCRA Company may give for return of such equipment. Buyer shall return returnable containers or packaging, freight collect. Buyer shall assume all other liability, including demurrage, with respect to such returnable containers and equipment, including packaging. Buyer agrees that if Buyer fails to return such containers and equipment within 120 days from date of invoice, The LYCRA Company, at its option, shall have the right to transfer title to such unreturned containers or equipment to Buyer by invoicing Buyer for the same at The LYCRA Company's then established prices, and the purchase price for such containers and equipment shall be due from Buyer upon receipt of invoice.
8. **MEASUREMENT.** Product quantities will be determined by The LYCRA Company's measurement equipment at The LYCRA Company's designated shipping point, unless proven to be in error. No adjustments will be made for (i) any quantities delivered more than ten (10) days prior to the date of any proven measurement confirming such error, or (ii) any claims for less than three percent (3%) of the quantities measured by The LYCRA Company at the shipping point. Product quality shall be governed by a sample of Product taken by The LYCRA Company at The LYCRA Company's designated shipping point.
9. **CLAIMS.** Buyer shall, at its sole cost and expense, inspect Product delivered hereunder immediately after receipt. Within ten (10) days of Buyer's receipt of Product and before the use, disposition, processing, admixture, reaction or other change from the original condition of any part of the Product (except for reasonable test and inspection quantities), Buyer shall notify The LYCRA Company in writing if Product is found defective or short in any respect. Buyer specifically acknowledges and agrees that it must test the compatibility of any fiber Products prior to any Use of fiber Products if the fiber merge number or other identifier differs from that designated in previous shipments. Any Use of any of Product (except for reasonable tests and inspection quantities) or Buyer's failure to give written notice to The LYCRA Company of such defect or shortage within such ten (10) day period shall constitute an unqualified acceptance of the Product and a waiver by Buyer of all claims with respect thereto.
10. **PAYMENT TERMS/CREDIT.** (a) Buyer shall pay all invoices, without deduction, via wire transfer of immediately available funds into the bank account designated by The LYCRA Company pursuant to the payment terms set forth in the Agreement. If the Agreement does not state payment terms, payment shall be received by The LYCRA Company no later than thirty (30) days from the date of The LYCRA Company's invoice. Delay in payment will result in Buyer being responsible for interest at a rate of one and a half percent (1½%) per month compounded monthly (19.6% per annum), or the maximum rate allowed by Law, whichever is less, on the outstanding amount of any unpaid invoice beginning on the day after the payment due date. If the payment due date is a Saturday, Sunday or holiday where The LYCRA Company's DESIGNATED bank is authorized or required to be closed, Buyer shall make such payment on the business day after such due date.
(b) The LYCRA Company makes no assurance or guarantee regarding any amount of credit or the continuation of such credit to Buyer. If The LYCRA Company, in its sole discretion, provides Buyer with a line of credit to facilitate purchases of Product from The LYCRA Company under the Agreement, such credit line may be amended, decreased or terminated at any time at The LYCRA Company's sole discretion.
(c) If any such credit provided to Buyer, or Performance Assurance is required by The LYCRA Company of Buyer, Buyer shall provide to The LYCRA Company any or all annual reports containing Buyer's and/or the Buyer's Performance Assurance provider's audited consolidated financial statements for a particular fiscal year. In all cases, the statements shall be for the most recent accounting period and prepared in accordance with generally accepted accounting principles.
(d) Notwithstanding the foregoing, if The LYCRA Company determines, in its sole discretion, that the creditworthiness or future performance of Buyer is impaired or unsatisfactory, The LYCRA Company may (i) suspend deliveries of Product, (ii) require prepayment by wire transfer of immediately available funds at least three (3) days prior to a scheduled shipment of Product, and/or (iii) require Performance Assurance at least three (3) days prior to a scheduled Product shipment. Buyer hereby waives written notice of any such action. "Performance Assurance" means collateral in the form of either cash, letter(s) of credit, guaranty, or other security acceptable to The LYCRA Company in its sole discretion.
(e) The LYCRA Company reserves the right, at any time, to Set-off against any amount that The LYCRA Company owes to Buyer under the Agreement or any other agreement between such parties. "Set-off" means set-off, offset, combination of accounts, netting of currency amounts of monetary obligations, right of retention or withholding or similar right to which The LYCRA Company is entitled (whether arising under the Agreement, another agreement, applicable Law, or otherwise) that is exercised by The LYCRA Company.
11. **LIMITED WARRANTY.** The LYCRA Company warrants only, at the time of delivery, that: (i) Product will conform to The LYCRA Company's then current specifications for the specific Product sold hereunder; and (ii) The LYCRA Company will deliver good title to the Product and that the Product shall be delivered free of liens or encumbrances. Buyer, having the expertise and knowledge in the intended Use of Product sold hereunder and any Use or other product or material made therefrom, assumes all risk and liability for results obtained by the Use of Product, whether Used singly or in combination with other substances or in any process. EXCEPT AS SET FORTH IN THIS SECTION, THE LYCRA COMPANY SPECIFICALLY DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS OR IMPLIED, WHETHER ARISING BY OPERATION OF LAW OR OTHERWISE, INCLUDING WITHOUT LIMITATION, ANY WARRANTIES OF MERCHANTABILITY OR FITNESS OF THE PRODUCT FOR A PARTICULAR PURPOSE, CONDITION OR QUALITY OF THE PRODUCT, ANY TRADE USAGE OR DEALING. ANY DETERMINATION OF THE SUITABILITY OF THE PRODUCT FOR THE USE CONTEMPLATED BY BUYER IS BUYER'S SOLE RESPONSIBILITY.
12. **LIMITATION OF LIABILITY AND LIMITED REMEDIES.** NOTWITHSTANDING ANYTHING HEREIN TO THE CONTRARY, IN NO EVENT WILL THE LYCRA COMPANY BE LIABLE TO BUYER FOR ANY (i) INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY OR PUNITIVE DAMAGES; or (ii) LOST OR PROSPECTIVE PROFITS, LOST EARNINGS OR BUSINESS INTERRUPTION, WHETHER OR NOT BASED UPON THE LYCRA COMPANY'S NEGLIGENCE, BREACH OF WARRANTY, STRICT LIABILITY, IN TORT OR ANY OTHER CAUSE OF ACTION. FOR THE SAKE OF CLARITY, THE PRECEDING SENTENCE INCLUDES THOSE INCIDENTAL AND CONSEQUENTIAL DAMAGES REFERENCED IN §2-715 OF THE NEW YORK UCC. Buyer's exclusive remedy vis-à-vis The LYCRA Company for any cause of action under the Agreement, including for failure to deliver or late delivery, is, at The LYCRA Company's option limited to (i) replacement of the non-conforming Product; or (ii) refund to Buyer of the portion of the purchase price attributable to such non-conforming Product. In no event shall The LYCRA Company's cumulative liability exceed the price of Product sold which was the direct cause of alleged loss, damage or injury. IN ANY EVENT, BUYER AGREES THAT THE RETURN OF THE FULL SALES PRICE FOR THAT PRODUCT SOLD WHICH WAS THE CAUSE OF THE ALLEGED LOSS, DAMAGE OR INJURY WILL PREVENT THE FOREGOING REMEDIES FROM FAILING OF THEIR ESSENTIAL PURPOSE, AND THAT SUCH REMEDY IS FAIR AND ADEQUATE.
13. **DEFAULT.** Upon the occurrence of any of the following events: (i) the failure by Buyer to provide Performance Assurance when due; (ii) The LYCRA Company did not receive a payment due from Buyer hereunder by the date

such payment is due under the Agreement, and such failure shall remain uncured for a period of five (5) days; (iii) the failure of Buyer to perform any other obligation in the Agreement and such failure is not excused or cured within ten (10) days after written notice thereof; (iv) the occurrence of a Bankruptcy Event; (v) the failure of Buyer to timely provide prepayment or Performance Assurance as set forth in Section 10(d) above; or (vi) the failure by any Performance Assurance provider of Buyer to perform any obligation of such Performance Assurance provider under any document executed and delivered in connection herewith, then The LYCRA Company, in its sole discretion and without prior notice to Buyer, may do any one or more of the following: (a) suspend performance under the Agreement or any other agreement between Buyer and The LYCRA Company; (b) cancel the Agreement or any other agreement between Buyer and The LYCRA Company, whereby any and all obligations of Buyer, including, without limitation, payments or deliveries due, will, at the option of The LYCRA Company, become immediately due and payable or deliverable, as applicable; and/or (c) Set-off against any amount that The LYCRA Company owes to Buyer under the Agreement or any other agreement between such parties. If The LYCRA Company suspends performance and withholds Product delivery as permitted above, The LYCRA Company may sell the Product to a third party and deduct from the proceeds of such sale the purchase price and all reasonable costs resulting from Buyer's default as identified above, including, without limitation, all costs associated with the transportation (including, without limitation, demurrage and other vessel or shipping related charges), storage, and sale of the Product. The foregoing rights, which shall include, without limitation, specific performance, shall be cumulative and alternative and in addition to any other rights or remedies to which The LYCRA Company may be entitled at Law or in equity. In addition, The LYCRA Company shall be entitled to recover from Buyer all court costs, attorneys' fees and expenses incurred by The LYCRA Company in connection with Buyer's default, and interest on past due amounts at the rate specified in Section 10(a) hereof. "Bankruptcy Event" means the occurrence of any of the following events with respect to Buyer or any Performance Assurance provider for Buyer: (i) filing of a petition or otherwise commencing, authorizing or acquiescing in the commencement of a proceeding or cause of action under any bankruptcy, insolvency, reorganization or similar Law; (ii) making of an assignment or any general arrangement for the benefit of creditors; (iii) having a bankruptcy petition filed against it and such petition is not withdrawn or dismissed within thirty (30) days after such filing; (iv) otherwise becoming bankrupt or insolvent (however evidenced); (v) having a liquidator, administrator, custodian, receiver, trustee, conservator or similar official appointed with respect to it or any substantial portion of its property or assets; or (vi) being generally unable to pay its debts as they fall due.

14. **PATENT INFRINGEMENT ARISING FROM PRODUCT USE.** Buyer expressly assumes the risk of and agrees, to the fullest extent permitted by Law, to indemnify, defend, and hold the Indemnittees harmless from and against any and all Claims for patent infringement by reason of Buyer's Use of Product provided hereunder, whether used singly or in combination with other product or material, or in the operation of any process.

15. **SPECIALTY MANUFACTURED PRODUCT.** If the Agreement covers Products that must be manufactured especially for Buyer, and the Agreement is suspended, terminated or cancelled for any reason, Buyer shall take delivery of and make payment for such Products as have been completed and such Products as are in process on the date notice of suspension, termination or cancellation is received by The LYCRA Company. If Buyer for any reason cannot accept delivery of such Products, Buyer shall make payment therefor as though delivery has been made and The LYCRA Company will store such Products for Buyer's account and at Buyer's expense.

16. **EXCUSED PERFORMANCE.** (a) Force Majeure: The parties will be excused from their respective performances hereunder (except Buyer's payment obligations) if performance is prevented or delayed by any acts of God, fire, explosion, flood, unusually severe or abnormal weather, riots or other civil disturbances, wars, acts of terrorism, actions of governments, voluntary or involuntary compliance with any Law or request of any governmental authority, strikes, lockouts or other labor difficulties, failure of usual sources of raw materials or other sources of supply, failure of computer systems to operate properly, destruction or loss of electronic records or data, failure of mechanical or chemical function or equipment normally used by The LYCRA Company for manufacturing, handling or delivering of Product, or internally produced intermediates used in manufacture of any of the Product, plant shutdowns, any necessity to not operate, or to reduce operation of, equipment in order to protect the safety of people or to protect the environment, or any circumstances beyond the reasonable control of the party seeking excuse from performance ("force majeure"). Promptly after a party determines a force majeure condition exists, that party will notify the other of the circumstances and consequences claimed and will use reasonable means to remove the cause(s) in question. Neither party will be obligated to settle any demands of, or disputes with, laborers; nor will Buyer be excused from paying monies due or complying with The LYCRA Company's credit terms. Quantities affected by force majeure will be deleted from the Agreement, but the Agreement will otherwise continue in full force and effect for the term set forth in the Agreement. In periods of shortage of Product due to force majeure, The LYCRA Company may apportion any reduced quantity of Product among itself and its customers and affiliates in an equitable manner. The LYCRA Company shall not be required to acquire Product to replenish any shortfall in Product arising as a result of a force majeure. Should The LYCRA Company acquire any quantity of Product following a force majeure, The LYCRA Company may use or distribute, without apportioning, such Product at its sole discretion. Notwithstanding the aforementioned, any quantity of Product The LYCRA Company acquires and distributes to any non-affiliated customers shall be equitably apportioned to all of The LYCRA Company's non-affiliated customers. Under no circumstances will The LYCRA Company be obligated to obtain Product for delivery hereunder except from its designated source(s) of supply, or if none is so designated by The LYCRA Company, from its usual, customary and/or most recent source(s) of supply.

(b) Impracticability: The LYCRA Company may suspend performance and/or terminate the Agreement without liability to Buyer if, for any reason, The LYCRA Company shuts down the unit(s) in which, or the plant at which, Product is made or if a change in circumstances (whether foreseeable or unforeseeable) causes The LYCRA Company to incur a loss on a full cost basis at any time on the sale of Product hereunder.

(c) Shortages: If for any reason shortages occur in The LYCRA Company's supply of the goods or products necessary to produce Product, unless Buyer has provided The LYCRA Company with written notice, and The LYCRA Company agrees in writing, that each source of supply must be a qualified source of supply, The LYCRA Company may, without obligation to Buyer, obtain similar products from other sources and allocate all such products produced among its customers, its own requirements and the requirements of its divisions, subsidiaries and affiliates, in a manner and amount that is fair and reasonable. The LYCRA Company may deduct the quantity not shipped because of this allocation from the quantity under the Agreement without liability to Buyer for failure to deliver.

17. **CONFIDENTIALITY.** Buyer agrees to treat as confidential all information supplied by The LYCRA Company, and not in the public domain, in connection with the Agreement, including, but not limited to: specifications, drawings, blueprints, and other technical, business or sales data, or statements of work (collectively, the "Confidential Information"). Buyer agrees to (i) limit use of aforementioned Confidential Information only to the performance of the Agreement, and (ii) limit the disclosure of the Confidential Information to those of its employees necessary for the performance of the Agreement, unless prior written consent has been granted by The LYCRA Company to permit other use or disclosure. Buyer shall, upon request or upon expiration, termination or cancellation of the Agreement, promptly return all documents previously supplied, destroy any and all copies that were reproduced, and send written confirmation to The LYCRA Company certifying such destruction.

18. **TRADEMARKS.** Except as may be contained in a separate trademark license, the sale of Product (even if accompanied by documents using a trademark or trade name) does not convey a license, express or implied, to use any trademark or trade name and Buyer shall not use a trademark or trade name of The LYCRA Company's in connection with the Product.

19. **SUCCESSOR AND ASSIGNS.** The Agreement binds and inures to the benefit of Buyer and The LYCRA Company and their respective successors and permitted assigns. Buyer may not assign any interest in, nor delegate any obligation under the Agreement, by operation of Law or otherwise, without The LYCRA Company's prior written consent. Any assignment or attempted assignment in contravention of the foregoing shall be null and void, shall be considered a breach of the Agreement, and shall permit The LYCRA Company, in addition to any other rights that it may have, to terminate the Agreement.

20. **GOVERNING LAW/VENUE FOR DISPUTES.** (a) This Agreement shall be governed by and shall be construed in accordance with the law of Singapore, without regard to any conflict of laws principle thereof. The application of the UN Convention on the International Sale of Goods (CISG) shall be expressly excluded. (b) All disputes arising out of or in connection with this Agreement shall be finally settled under the Rules of Arbitration of the International Chamber of Commerce (the "ICC") in effect at the time of the arbitration, except as they may be modified by agreement of the Parties. An arbitral tribunal (the "Tribunal") shall be established consisting of three arbitrators. The LYCRA Company and Buyer each shall nominate one arbitrator who shall serve as co-arbitrator of the Tribunal. In the event that either The LYCRA Company or Buyer fails to appoint a co-arbitrator, then the ICC appoint a co-arbitrator. The two appointed co-arbitrators shall nominate a third arbitrator who shall serve as the chair of the tribunal. If the two co-arbitrators are unable to agree on a third arbitrator within thirty (30) days upon confirmation of the second co-arbitrator, then the third arbitrator shall be appointed by the ICC. The chair of the Tribunal shall be of a nationality other than The LYCRA Company or Buyer. All three arbitrators must be fluent in the English language. The place of the arbitration shall be Singapore. The arbitration and any award or ruling shall be conducted in the English language. Either the Buyer or The LYCRA Company may seek interim injunctive relief from a court, which shall not be deemed as a waiver of any provision in this Section 20. The Tribunal shall have authority to order interim relief, injunctive relief or both. To the fullest extent permitted by applicable laws, the arbitration proceeding and resulting award shall be maintained in confidence by The LYCRA Company and Buyer except for purposes of court proceedings to enforce the award or other court proceeding involving The LYCRA Company and Buyer. The prevailing party in the arbitration shall be entitled to recover costs and expenses of the arbitration, as well as reasonable attorney's fees.

21. **AMENDMENT.** No salesperson is authorized to bind The LYCRA Company; orders placed with a salesperson are not binding on The LYCRA Company until confirmed in writing by The LYCRA Company's authorized employee. All technical advice, services and recommendations by The LYCRA Company are intended for use by persons having skill and know-how, and are accepted by Buyer at its own risk and The LYCRA Company assumes no responsibility for results obtained or damages incurred from their use. No statements or agreements, oral or written, not contained herein or in a future amendment hereto executed by both parties will vary or modify the terms hereof. Neither party shall claim any amendment, modification or release of any provisions hereof unless the same is in writing and such writing: (i) specifically refers to the Agreement; (ii) specifically identifies the term amended; and (iii) is signed by duly authorized representatives of The LYCRA Company and Buyer.

22. **NOTICES.** All notices, consents, communications or transmittals under the Agreement shall be in writing and shall be deemed received on the day of delivery if delivered by hand, by nationally recognized overnight courier or delivery service, or by facsimile (with written confirmation of the completed transmittal); or within three (3) business days if mailed certified or registered recorded delivery mail, postage prepaid, addressed to the party to whom such notice is given at the address of such party stated in the Agreement.

23. **INDEPENDENT CONTRACTORS.** The LYCRA Company and Buyer are independent contractors only and are not partners, master/servant, principal/agent or involved herein as parties to any other similar legal relationship with respect to the transactions contemplated under the Agreement or otherwise, and no fiduciary, trust or advisor relationship, nor any other relationship, imposing vicarious liability shall exist between the parties under the Agreement or otherwise at Law.

24. **NO THIRD PARTY BENEFICIARIES.** The Agreement is solely for the benefit of The LYCRA Company and Buyer and shall not be deemed to confer upon or give to any third party any right, claim, cause of action or interest herein.

25. **MISCELLANEOUS.** These Terms supercede any terms and conditions of previous dates, and if there is a conflict between these Terms and the specific provisions contained in the Agreement, the specific provisions contained in the Agreement shall control. Capitalized terms not defined herein shall have the meanings set forth in the Agreement. The captions and section headings set forth in the Agreement are for convenience only and shall not be used in defining or construction of any of the terms and conditions of the Agreement. Waiver by either party of any breach of the terms and conditions contained herein will not be construed as a waiver of any other or continuing breach. The invalidity or unenforceability of any provision of the Agreement shall not affect the validity or enforceability of its other provisions. If the Agreement is a requirements contract or a partial requirements contract, or if rebates are to be paid, Buyer shall maintain books and records sufficient to document and verify Buyer's purchase obligations and history and shall permit Seller, during normal business hours, to audit those books and records. No course of dealing, course of performance, or usage of trade shall be considered in the interpretation or enforcement of the Agreement.

26. **Privacy.** The LYCRA Company collects and processes personal data provided by Buyer ("Data") to fulfill Buyer's purchase order, manage the relationship, and comply with legal obligations ("Purpose"). Buyer agrees that all required consents to share Data with The LYCRA Company have been obtained and that The LYCRA Company may share Data with third-party service providers for the Purposes. The LYCRA Company may transfer Data internationally, ensuring appropriate protections are in place to secure Data against unauthorized access. Buyer should contact The LYCRA Company's Sales Manager or The LYCRA Company's website to access, correct, or delete any shared Data, or to restrict or object to certain processing activities.

[END OF TERMS]